

Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002

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State of Andhra Pradesh - Act

Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002

ANDHRA PRADESH

India

Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002

Rule ANDHRA-PRADESH-GRAM-PANCHAYAT-LAND-DEVELOPMENT-LAYOUT-AND-BUILDING-RULES-2002 of 2002

Published on 26 February 2002

Commenced on 26 February 2002

[This is the version of this document from 26 February 2002.]

[Note: The original publication document is not available and this content could not be verified.]

Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002

Published vide Notification No. G.O.Ms.No. 67, Panchayat Raj and Rural Development (Parts - IV) dated 26.2.2002

Last Updated 26th August, 2019

G.O.Ms.No. 67. - In exercise of the powers conferred by sub-section (1) read with clause (xvii) of subsection (2) or Section 268 of the Andhra Pradesh Panchayat Raj Act, 1994 (Andhra Pradesh Act 13 of 1934), and in suppression of Andhra Pradesh Gram Panchayat Building Rules, 1972 issued in G.O.Ms. No. 377, Panchayat Raj (S.II) Department, dated 12-10-1973 and as amended from time to time and the rules, regulations and orders issued relating thereto the Governor of Andhra Pradesh hereby makes the following rules relating to the regulations or restrictions of the use of

sites and for buildings.

1.

Short title, Commencement and Applicability.

(1)

These rules may be called the Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002.

(2)

They shall come into force from the date of notification.

(3)

These rules extend to all Gram Panchayat Areas of Andhra Pradesh except the areas falling in

(a)

Urban Development Authority areas and special Development Authority areas as notified by the Government under the provisions of the Andhra Pradesh Urban Areas (Development) Act, 1975;

(b)

Draft/Sanctioned General Town Planning Scheme/Master Plan areas of Municipal Corporations/ Municipalities notified under the provisions of Andhra Pradesh Town Planning Act, 1920.

(c)

Andhra Pradesh Industrial Infrastructure Corporation (APIIC) Layout areas and other Notified Industrial Areas;

(d)

Any area notified accordingly by the Government from time to time.

(4)

The rules issued by the Municipal Administration and Urban Development Department of the Government are deemed to be applicable for the areas mentioned in sub-rule (3) above.

(5)

These rules, shall apply in such areas concurrently only to the extent of -

(i)

Levy of fees under sub-rules (3) and (4) or Rule 5.

(ii)

Inspections, Monitoring and taking action on unauthorized developments and building permissions.

(iii)

Any other item for which no specific rules/orders are issued by the Government.

2.

Definitions.

- In these rules, unless the context otherwise requires, the following definitions shall apply, Words and expressions used but not defined in these rules shall have the meaning assigned to them in the National Building Code of India or standard dictionary meaning if not defined in the Code.

(1)

"Act" means the Andhra Pradesh Panchayat Raj Act, 1994 (AP Act 13 of 1994

);

(2)

"Balcony" means a horizontal cantilevered projection, including a handrail or balustrade, to serve as passage or as sitting out place;

(3)

"Barn" means a building or structure with a roof of zinc sheets or tiles having flue pipes, furnace and tires used for flue curing of tobacco leaves;

(4)

"Basement or Cellar" means the lower storey of a building or Complex which is below or partly below the ground and to be used only for parking of vehicles;

(5)

"Betterment Charge" means a charge levied by the Technical approving authority for ensuring off site services and amenities to the area;

(6)

"Building" means any structure for whatsoever purpose and whatsoever materials constructed, and every part thereof whether used for human habitation or not, It includes foundation, plinth, walls, floors, roofs, chimneys, plumbing and building services, fixed platforms, verandah, balcony, cornice or projection, part of a building or anything affixed thereto or an wall enclosing or intended to enclose any land or space, and sings and outdoor display structures. Tents, pandals, shamianahs/tarpaulin sheltors shall not be considered as buildings

(7)

"Building Line" means the line up to which a building abutting a street or/ road or extension of a street or future street may be allowed to be constructed. Building line is synonymous with the front setback and may be specified by the Executive authority, Collector, the technical town planning unit or the Roads and Buildings department or any other department that are responsible for ensuring the right-of-way of the street or road or highway that a plot abuts;

(8)

"Chajja" means a sloping or horizontal structural overhang usually provided over openings on external walls for providing protection from sun and rain;

(9)

"Chowk or Courtyard" means a fully or partially enclosed space permanently open to sky within a building at ground level and serves as lighting and ventilating space besides for outdoor activities, etc.;

(10)

"Collector" means the Collector of the district and his office and officials;

(11)

"Conservancy lane" means a lane intended to be used mainly for scavenging purposes and not for providing primary access to any road, street, dwelling, house, hut or building;

(12)

"Corridor" means a common passage or circulation space including a common entrance hall in a building;

(13)

"Cottage Industry" or "Customary Home Occupation" means a home occupation customarily carried out by a member of the family residing in the premises without employing hired labour, without display of goods, and which shall be non-hazardous and not affecting the safety of the inhabitants of the building and the neighbourhood. provided that no mechanical equipment is used except that as in customarily used for purely domestic or household purposes and/or employing licensable goods. If power is used, the total electricity load shall not exceed (10) H. P.

(14)

"Development" means the carrying out of building, engineering, mining, or other operations in, or over, or under land or water, or the making of any material change, in any building or land, or in the use of any building or land, and includes redevelopment and layout and Sub-division of any land, and "to develop" shall be construed accordingly;

(15)

"Development Charge" means a charge levied by the Technical approving Authority under the provisions of the Andhra Pradesh Town Planning Act, 1920 and its Amendments;

(16)

"Drain" means a system or a line of pipes, with their lettings and accessories such as manholes, inspection chambers, traps, gullies, floor traps and used for drainage of building or yards appurtenant to the buildings within the same cartilage. It includes an open channel for conveying surface water or a system for the removal of any liquid;

(17)

"Dwelling" means a house designed or intended to be used wholly or partially for human habitation together with such out-house, latrine, cattle shed, store room or other extensions or erections as are ordinarily used or intended to be used therein;

(18)

"Executive Authority" means the executive authority of the Gram Panchayat which sanctions and releases the permissions and undertakes to ensure that the construction activity/layout development activity is carried out in accordance with the sanctioned plans, etc.;

(19)

"Height of building" means the vertical distance measured from the average level of the ground around and contiguous

to the building to the topmost point of the building in the case of flat roofs; and in the case of sloping roofs up to the midpoint between the eaves level and the ridge. Parapet walls and architectural features for purpose of elevation features are excluded for the purpose of taking heights of buildings;

(20)

"High Rise building" means a building of height more than 15 meters. Water tanks; lift rooms/staircase rooms up to one floor height are excluded from this definition;

(21)

"Low Cost Housing" means housing development and schemes for socially and economically weaker/backward sections of the society at affordable costs of built-up area and services. The requirements and construction specifications are as instructed by the Government from time to time. It includes low cost housing undertaken by public agencies, co-operative societies, Government or semi-Government bodies and also private developers with express permission of the Collector;

(22)

"Layout" means the laying out a parcel of lands into building plots with laying of roads/streets with formation, leveling, metalling or black topping or paving of the roads and footpaths, etc. and laying of the services such as water supply, drainage, street lighting, open spaces, avenue plantation, etc.;

(23)

"Means of Access" means an access to a building or plot from an existing public street or road through a road/street/pathway;

(24)

"Open Space" means an area forming an integral part of the plot, left open to sky;

(25)

"Owner" means a person, group of persons, a Company, Trust, Registered Body, State or Central Government and its attached subordinate departments, Public or Private Undertakings or Corporations and the like, who has title for the property or in whose name the property stands registered in the Revenue Records;

(26)

"Plot" means a continuous portion of land held in a single or joint ownership other than the land used, allotted, earmarked or set apart for any street, lane, passage, pathway, conservancy lane or for any other public purpose.

(27)

"Plot coverage" means the ground area covered by the building and does not include the area covered by compound wall, gate, cantilever porch, chajja, well, septic tank, open platform and the like. It is expressed as percentage of the site/plot area;

(28)

"Reconstruction" of a building means and includes,-

(a)

the re-erection wholly or partly of the building after more than one half of its actual content has been pulled down or burnt down or fallen down at one time or at different times;

(b)

the conversion of a building into a factory, shop, office, warehouse, school or institution, one or more dwelling house, or a place of worship;

(29)

"Setback" shall mean the space to be left fully open to sky from the edge of the building to the property line or boundary of the street. No built-up space shall be provided within the setback except specifically permitted projections and other structures under these rules;

(30)

"Unsafe Building" means those building which are structurally unsafe, insanitary or not provided with adequate means of egress or which constitute a fire hazard or are otherwise dangerous to human life or which in relation to existing use constitute a hazard to safety or health or public welfare, by reason of inadequate maintenance, dilapidation or abandonment;

(31)

"Village Settlement" or "Grama Khantam" or "Agraharam/Abadi" means all lands that have been included as Agraharam /

Abadi by the Government/Collector within the site of village and includes existing village hamlets;

Part-A Layout Rules

3.

Application for Layout Permission.

(1)

Every person or a corporate body of the Government or a private corporate body who intends to undertake or carry out layout or development work shall apply in writing to the Executive Authority of such intention in the form prescribed in Annexure-A appended to these rules.

(2)

The layouts prepared by the Revenue Department for distribution of pattas to the weaker section shall be in accordance with these rules. In case of Weaker Section Housing Programme the guidelines issued by the State Government should invariably be followed.

(3)

The application for permission shall be accompanied by,-

(i)

A site plan drawn to scale of not less than 1: 1000 showing all Physical details of the land, boundaries of the land, the surrounding existing layouts/ lands, and existing approach road to the land where the layout is proposed;

(ii)

A Layout Plan (in required number of copies) drawn to a scale of not less than 1:500 showing boundaries of land, proposed number of building plots with dimensions and area of each plot and its uses as per these rules, alignment and width of the proposed streets/roads, dimensions and areas of open space provided according to these rules;

(iii)

A Statement of the details and dimensions of each plot, percentage of area under open spaces, roads, amenities and plotted area;

(iv)

High Tension/Low Tension electricity Lines, water mains, sewer lines, telephone and telegraph lines, alignment and right-of-way of National/State highways. Major/ Minor District Roads passing through the layout site;

(v)

Certificate of Undertaking in prescribed Form jointly by owner and qualified surveyor/Engineer (appended at Annexure-I), for carrying out the development works as per standards.

(vi)

Copy, of the ownership documents of the plot/property/land concerned together with a Non-Encumbrance Certificate from the Registration Department.

(vii)

Certificate of demarcation of site by Assistant Director, Survey and Land Records, Department;

(viii)

Layout scrutiny charges and inspection charges as prescribed in the Personal Deposit Account of Director of Town and Country Planning.

(ix)

A Security Deposit as prescribed by the Government for the due fulfillment of the conditions imposed or in lieu of such deposit, a security in the shape of land of such extent equivalent in the value of cash deposited in the area covered by the layout shall be mortgaged through a registered mortgage deed in favour of Gram Panchayat or in the form of bank guarantee equivalent to the amount of security deposit in the form prescribed in Annexure-D appended to these rules.

(4)

The owner of any land or groups of owners/developers who intend to subdivide or layout the land into building plots in the Revenue Survey Nos. area of the Village, i.e., outside the Gram Kan tarn or settlement area shall;

(a)

apply to the Executive Authority for necessary layout permission as prescribed in sub-rule (1) and in accordance with these rules;

(b)

carry out the layout development works as per specifications and standards appended in Annexure-B of these rules

before disposing the plots.

(5)

For a plot abutting existing major roads or highways, plot sub-division permission is necessary, which has to comply with these rules. No building permission shall be entertained unless such sub-division permission is obtained first and all charges as mentioned in Rules 5(3) and 5(4) are paid.

(6)

For areas covered by Indicative Land Use Plans of Mandal head quarters, approved by the Director of Town and Country Planning, the proposals shall be in conformity with such development plan and provisions contained therein.

4.

Minimum requirement for approval of Layout.

(1)

The Layout proposal shall conform to the requirements:

(a)

shall have approach through an existing road, the width of such shall not be less than 10 meters (in case of land-locked plots, the owner has to ensure the approach road through neighbouring lands accordingly;

(b)

minimum width of proposed roads in the layout shall be 10 meters for residential and 12 meters for all nonresidential layouts. Notwithstanding the above minimum width, the Executive Authority may insist upon larger road widths depending upon local conditions or importance of any particular road etc., as appended in Annexure-C. The width of the roads in the layouts General Town Planning Scheme or the Indicative Land Use Plan or Master Plan, if any in force;

(c)

minimum open space set apart in the proposed layout for playground /park /educational institution or for any other public purpose shall be at the rate of 10% of the total site area;

(d)

the minimum plot size for nonresidential layouts shall be 300 Sq. Meters except in case of Commercial or Mercantile buildings for which the minimum plot size shall be 18 Square Meters.

(e)

the layout proposals shall comply with the restrictions mentioned in Rule 5 of these rules.

(f)

the applicant should provide a service road of minimum 10 meters width for the layout if the land is abutting to National Highway having less than 600 meters width.

5.

Required specifications and conditions.

(1)

The owner of a site shall undertake the following works under the supervision of Executive Authority with the surveyors after intimation of the layout approval by the Executive authority:

(i)

leveling with suitable gradient and formation of all roads with subsurface, kerbstones, metalling of the carriageway, side drains as per specifications in Annexure-B;

(ii)

Construction of drains and channelization of nalas for allowing storm water run-off. These may be channelised in such a way as to conserve or harvest the water in nearest water body or public open space, etc.;

(iii)

Undertake greenery in the layout including avenue Plantation, in public open spaces, etc.;

(iv)

Fencing of open spaces;

(v)

Unless the conditions specified above are fulfilled, the owner shall not be entitled to utilize, sell, lease or otherwise dispose of the land or any portion thereof;

(2)

The following works shall be undertaken through the Executive Authority upon payment of proportionate charges at a

latter date:

(a)

street lighting and electricity facilities;

(b)

Provisions of sewerage disposal system and protected water supply system are optional;

(3)

Application scrutiny fees and other charges to be levied by the Executive Authority;

The Applicant shall pay the layout inspection and scrutiny fees in the Personal Deposit account of Director of Town and Country Planning as prescribed by the Government from time to time-

(4)

Other Charges. - In addition to the above, the Executive Authority shall levy development charges and betterment charges as specified by the Collector or Government as the case may be.

6.

Sanction or refusal of Permission.

(1)

The Layout proposals with plans/ drawings and specifications may be sanctioned with or without modifications or directions as are deemed necessary or refused by the Executive Authority within:

(i)

90 days from the date of application in case of layout applications;

(ii)

any application with all the required particulars not disposed off within a period of 90 days from the date of receipt in the Gram Panchayat Office, shall deemed to have been sanctioned in accordance with the provisions of these rules;

(iii)

however any construction or development of layout carried out under deemed provisions cannot be in contravention of any of the layout and building rules.

7.

Duration of sanction.

- The permission for layout development shall remain valid for two years during which time the layout works shall be completed, and if not completed the permission for layout development shall be revalidated on application subject to the rules the in force and payment of 10% of the fees and charges.

8.

Revoking of Permission.

- The Executive Authority or District Panchayat Officer may revoke any permission issued under these rules whenever it is found that there' has been any false statement or wrong permission is issued or any misinterpretation of any material fact or rule on which the permission was sanctioned.

9.

Deviations during construction/ undertaking of layout works.

- It during the execution of any layout, any deviation is made from the sanctioned plan the owner shall obtain revised sanction as per the above procedure and rules.

10.

Responsibilities and Duties of Owner.

- The owner who has been given sanction shall be wholly and solely responsible for the quality of workmanship of layout development works, and for ensuring safety during the construction/development works, etc.

11.

Prior Technical Approval from Director of Town and Country Planning is necessary for certain permissions.

(1)

The Competent Authority for the Technical Approval;

(a)

The District Town and Country Planning Officer is the Competent Authority to accord technical approval for the layouts:

(i)

in the villages with 10,000 or more population.

(ii)
in the Urban Centers to be notified separately by the Director of Town and Country Planning.

(iii)
in all the Mandal headquarters irrespective of the population of the village.

(b)
The Gram Panchayats of villages with less than 10,000 populations are competent to accord sanction for the layouts in their respective villages, wherever the indicative Land Use Plan is prepared for the village by the Town and Country Planning Department, the layouts sanctioned prepared will be in conformity with them,

(i)
in respect of the villages with more than 5,000 and less than 10,000 population the District Town and Country Planning Officer shall prepare Indicative Land Use Plans and keep them available with the respective Gram Panchayats.

(ii)
in respect of the villages with less than 5,000 population the District Town and Country Planning Officer shall get the Indicative Land Use Plans by engaging the qualified personnel and approve them and keep them available with the respective Gram Panchayats.

(2)
On receipt of the application for layout approval, the Executive Authority may call for further particulars, if required and necessary. The applicant shall furnish the required particulars within ten days from the date of receipt of the notice by him. The Executive Authority shall there after forward the proposals to The District Town and Country Planning Officer wherever necessary, with the layout plan and full particulars within a period of ten days from the date of receipt of particulars from the applicant wherever required. The District Town and Country Planning Officer shall within thirty (30) days after furnishing of all the particulars to them, forward the tentatively approved layout to the Executive Officer, Gram Panchayat concerned. The Executive Officer of the Gram Panchayat may submit a report with in fifteen days after laying the Water Bound Macadam (WBM) roads by the applicant as per the specifications appended at Annexure-B of these rules. The concerned District Town and Country Planning Department shall inspect the site and approve the layout within fifteen (15) days, if the demarcated tentative layout is in accordance with the tentatively approved layout and in accordance with these rules; and shall communicate the technical clearance for final approval of the layout to the Gram Panchayat concerned for all those falling within above sub-rule (1) (a).

(3)
The Executive Authority shall within fifteen (15) days of the receipt of the technical approval from the District Town and Country Planning Officer, communicate to the applicant with such conditions and modifications subject to which the layout will be considered for approval indicating the estimated cost of development and the amenities.

(4)
The applicant shall within ten (10) days after the receipt communication, communicate to the Executive Authority of the Gram Panchayat his agreement in from prescribed in Annexure-E appended to these rules with an additional non-returnable deposit of the sum equivalent to 5% of the provisional estimated cost of works to be executed by the gram Panchayat.

(5)
Applicant can deposit amount in cash or shall give bank guarantee as prescribed in Annexure-D or execute mortgage deed equivalent to estimated cost in the form prescribed Annexure-F appended to these rules.

(6)
If a reply is not received from the applicant within 10 days of the receipt of the communication referred to in sub-rules (4) and (5) above, the original application shall be treated as having lapsed.

(7)
All the roads and open spaces such as parks and playgrounds earmarked in accordance with these rules in a layout, which is approved by the Gram Panchayat shall automatically stand transferred free of cost, and vest with the gram panchayat free from all encumbrances. After such vesting, the gram panchayat shall maintain all such open spaces for the purpose for which they have been earmarked.

(8)
Such sanction may be refused on any of the following grounds namely:

(i)

applications not received in the prescribed form and not accompanied by the documents mentioned in the rule 3;

(ii)

if the proposed street or road in the layout does not confirm to the provisions of the Act or the rules made thereunder;

(iii)

if, the proposed street or road is not so planned as to connect at least at one end with a street which is already open; or

(iv)

If, adequate area has not been set apart for public purposes under Rule 4 (1) (c).

Note. - The Executive Authority shall maintain registers of all layouts, fees and charges collected in prescribed manner.

12.

Offences and Penalties.

(1)

Any person who contravenes any of the provisions of these rules or any requirements or obligations imposed on him by virtue of these rules shall be guilty of an offence and upon conviction by the District Panchayat Officer shall:

(a)

be punished with a fine as prescribed by the Government and in case of continuing offence a daily fine until the contravention is made good or removed;

(b)

Executive Authority shall require owner to take suitable actions including demolition of unauthorized works and in case of non compliance it shall enforce;

(c)

take suitable action against technical personnel, which include prosecution or debarring him from further practice up to five years.

(2)

In the case of unauthorized layouts, the District Panchayat Officer or his officers may take any of the above actions and issue suitable instructions to the Executive Authority or any other body for necessary action against the unauthorized layouts, besides taking action on the Executive Authority for allowing such unauthorized layout developments.

13.

Status of existing Gram Panchayat / previously approved layouts.

(1)

These layout rules shall apply to all existing layouts in the Gram Panchayat areas. Those layouts that have not complied with valid approval, or having shortfall in layout development works or open spaces or road widths, etc., as per these rules shall be got regularized first from the collector, without which no building permission shall be entertained or accorded, the regularization would be based on levy of pro rata charges for shortfall of open spaces, collection of pro rata betterment charges and development charges and improvement of the road pattern and drainage, etc., which has to be borne by the owners of the plots colony, the regularization would be with reference to a cut of date to be notified separately.

(2)

The Executive Authority shall be responsible for identifying and arresting such unauthorized layouts.

Part-B Building Rules

14.

Application for Building Permission.

(1)

The application for permission to construct building shall be accompanied by a site plan drawn to scale of not less than 1:500 in a prescribed application appended at Annexure-G:

(i)

The existing approach road or means of access with width:

(ii)

The boundaries, giving the dimensions of the site and of any contiguous land belonging to the owner thereof;

(iii)

All existing buildings position in the site, if any;

(iv)

The position of the site in relation to neighbouring streets, if any;

(v)

Space to be left about the building to secure free circulation of air, admission of light and access for scavenging purposes;

(vi)

Any existing physical features such as wells, drains, trees, etc.;

(vii)

The ground area of the whole property and the built-up area;

(viii)

The Plans of the building, elevations and Sections drawn to a scale of not less than 1:100 of all floors showing uses of all parts of the building.

(ix)

Give general specifications of proposed construction and type of materials used, and also giving information of services about water supply, drainage disposal, etc., and duly signed by the owner and the qualified Surveyor/Engineer/ Architect as prescribed in the application form in Annexure-G appended to these rules.

(2)

No such application for permission shall be deemed necessary for the following minor alterations, repairs in any existing building in accordance with these rules;

(a)

providing or closing of a window or door or ventilator not opening towards other's property;

(b)

undertaking fencing or construction of compound wall;

(c)

Providing intercommunication doors;

(d)

whitewashing/painting;

(e)

plastering and patch work; and

(f)

re-flooring;

15.

Exempted Buildings.

(1)

The following operational construction of the Government whether temporary or permanent, which is necessary for the operation, maintenance, development or execution of any of the following services, are exempted from the purview of these rules;

(a)

Railways;

(b)

Notional Highways, state Highways and Major District Roads;

(c)

Works undertaken by the District Administration/Zilla Praja Parishad/Mandal Praja Parishad/ Gram Panchayat;

(d)

Waterways;

(e)

Ports;

(f)

Airways and Aerodromes;

(g)

Defence;

(h)

Any other service which the Government may declare to be a public utility service from time to time for the purpose of this clause;

16.

Sites considered for Building Activity.

- No site or parcel of land shall be used for building activity unless it is approved as building plot or forms part of an approved layout. This rule, however, shall not be applicable in case of;

(a)

sites and properties in existing settlement areas;

(b)

farm buildings'

(c)

Industrial and non-residential buildings abutting highways/main roads.

17.

Minimum plot size requirements.

(1)

The minimum requirement of plot area for non-residential, industrial buildings and the building proposals consisting of G.F.-2 floors and above except Commercial or Mercantile buildings shall be 300 Sq. Meters.

(2)

The minimum requirement of plot area for residential Apartments, complexes shall be 335 Sq. Meters.

18.

Means of Access for considering Building Permission.

(1)

Minimum approach road / Means of Access requirement in Gram Khantam / Settlement area shall be 3.6 meters;

(2)

Minimum approach road / Means of Access requirement out side settlement area shall be 10 meters;

(3)

Minimum approach road / Means of Access requirement for residential Complexes / all non-residential buildings shall be 12 meters.

19.

Proximity of electric supply lines with holding permission.

(1)

Before granting permission for the construction or reconstruction of or the addition or alternation to a building, the executive authority shall take into consideration the proximity of electric supply lines, if any, and shall with hold permission for such construction, re-construction addition or alteration, unless suitable arrangements are made by the applicant to meet the requirements of the permission of the Indian Electricity Act, 1910 and the rules made thereunder and unless the clearance between the electric supply lines; and the building are kept as shown in the Annexure-H.

20.

Permissible Height and setback requirements.

(1)

The minimum open spaces/setbacks (Open to sky) and height restrictions shall be as follows for considering the building permissions in Minor Gram Panchayats;

(i)

Height permissible: 9 meters or G + 2 floors in

Gram Khan tarn and 13 meters or G + 2 floors height in Revenue

survey number areas;

(ii)

Setbacks:

In Gram Khantam:

Front setback or building line.

1.50 meters

Rear Setback:

1.00 meters

(iii)

Where the lighting and ventilation of a building is through the means of a chowk or inner courtyard, such open space shall be open to sky and of area at least 3.0 Sq. meters and no side less than 1.5 meters.

(iv)

In Revenue Survey number areas:

Front Setback:

3.00 meters

Rear Setback:

2.00 meters

Sides Setbacks:

1.50 meters on each side

(v)

In case of corner plots the front building setback shall be left on all sides abutting the roads.

(2)

The minimum open spaces / setbacks (open to sky) and height restrictions shall be as follows for considering the building permissions in Major Gram Panchayats;

(i)

In Gram Khantam/Settlement areas:

Height permissible

9 meters

floors: Setbacks:

or G+2

Front Setback:

1.50 meters

Rear Setback:

2.00 meters

(ii)

Where the lighting and ventilation of a building is through the means of a chowk or inner courtyard, such open space shall be open to sky and of area at least 3.0 Sq. meters and no side less than 1.5 meters.

(3)

The minimum open spaces/setbacks (open to sky) required and height restrictions shall be as follows for considering the building permissions in Revenue survey numbers;

(i)

Height permissible:

13. meters or G-3 Floors for Residential, 15 meters or G+4 Floors for Non-residential, For Industrial as per requirement.

(ii)

Setbacks and Coverage permissible:

Plot size (in sq. meters)

Minimum setbacks (in meters)

Road side*

Rear

Sides

(1)

(2)

(3)

(4)

Upto 50

0.75

51 and up to 100

1.00

1.00

0.50

101 and up to 150

1.50

1.50

1.00

Above 151 and up to 300

1.50

2.00

2.00

Above 301 and up to 500

3.00

2.00

2.00

Above 501

3.00

3.00

3.00

(4)

For buildings abutting highways a building line of 6 meters shall be maintained irrespective of the plot size.

(5)

In case of corner plots the front building setback shall be left on all sides abutting the roads.

(6)

Where the lighting and ventilation of a building is through the means of a chowk or inner courtyard, such open space shall be open to sky and of area at least 9.0 Sq. meters and no side less than 3 meters.

21.

Restrictions of building activity in vicinity of certain areas.

(a)

no building activity shall be allowed in the bed of water bodies like rivers, lake, pond or nala, etc.

(b)

no building activity shall be carried out within:

(i)
30 meters from the boundary of Rivers and Lakes of surface area for 10 Ha and above:

(ii)
15 meters from the boundary of lakes of surface area for less than 10 Ha.

(iii)
9 meters from Nalas, Canal, etc.

(c)

for building activity within the restricted zone near the airport or Defence areas / Military establishments, necessary clearance from the concerned Airport Authority/Defence Authority/shall be obtained:

(d)

in case of sites in vicinity of High Tension Electricity transmission lines minimum safety distance (both vertical and horizontal) of three (3) meters shall be maintained between the buildings and the High Tension electricity lines;

(e)

in case of Railway line, a minimum distance of (30) meters shall be maintained from the edge of the Railway property,

and in built up areas where land cost is high, sufficient space shall be left to safe guard the interest of the Railways.

22.

Projections and exemptions in open spaces.

- (i) Chajjas/weather shades of width not exceeding 60cm shall be allowed in the mandatory setbacks;

(ii)

In case of plots more than 300 Sq. meters, the following accessory uses may be allowed in the front or rear open spaces the height of these accessory buildings shall not be more than 2.75 meters;

(iii)

A cow shed or store room, latrine may be allowed in rear open space;

(iv)

An outhouse, open staircase may be allowed in front open space. In case of non-residential buildings, parking sheds, guardroom, overhead water tank, sump, septic tank, well may be allowed in the open spaces;

(v)

Balconies shall be allowed only within the mandatory open spaces and not allowed to project on to the open spaces.

23.

Parking requirements.

- (i) In all Complexes including residential complexes, hotels, restaurants and lodges, business buildings, commercial buildings, Institutional buildings like hospitals, Educational buildings like schools and colleges, etc., and all other non-residential activities provision shall be made for parking spaces at per the following requirements;

Category of building/ activity

Parking area as percentage of total built up area

(1)

(2)

Residential complexes, hotels, restaurants,
lodges, cinema halls, business buildings, commercial buildings,
Kalyana mandapams, Offices

20%

hospitals, institutional buildings, industrial,
schools, colleges and other educational buildings

10%

(ii)

The parking spaces in case of complexes can be in basement or cellar or on stilt floor or in the open space over and above the minimum setbacks to be left around the building with adequate vehicular access, aisle, drives, ramps required for maneuvering of vehicles;

(iii)

The cellar shall be restricted to building line and a minimum of 1.5 meters safe distance has to be maintained on sides and rear side.

(iv)

The width of the ramp shall not be less than 3.6 meters and the slope of the ramp shall not be less than 1 in 8.

24.

Application scrutiny Fees and other charges to be levied by the Executive Authority.

- The Executive Authority shall levy application and scrutiny fees for all applications as notified by the Government from time to time. However the weaker section-housing programme is exempted from levy of fees and duties.

25.

Other Charges.

- In addition to the above, the Executive Authority shall levy development charges and Betterment Charges as specified by the Collector or Government.

26.

Sanction or refusal of Permission.

- The Layout plans/building plans with drawings and specifications may be sanctioned with or without modifications or

directions as are deemed necessary or refused by the Executive Authority within;

(i)

(15) days in case of individual residential buildings;

(ii)

(30) days in case of other buildings;

Where no orders are communicated by the Executive Authority of sanction or refusal of the permission, the Executive Authority shall be deemed to have permitted the proposed permission and the owner may go ahead with the work provided that the same;

(i)

is in accordance with these rules;

(ii)

the owner intimates in writing of his undertaking the construction/ development.

27.

Duration of Sanction.

- The permission for building construction shall remain valid for two years during which time the building construction shall be completed, and if not completed the permission for building construction shall be revalidated on application subject to the rules then in force and payment of the fees and charges as prescribed in the Schedule.

28.

Revoking of Permission.

- The Executive Authority or the District Panchayat Officer may revoke any permission issued under these rules whenever it is found that such permission was obtained by fraudulent means or misrepresentation of facts.

29.

Deviations during construction/ undertaking up layout works.

- If during the execution of any building construction any deviation is made from the sanctioned plan the owner shall obtain revised sanction as per the above procedure and rules.

30.

Responsibilities and Duties of Owner.

- The owner who has been given sanction shall be wholly and solely responsible for the quality of workmanship of the building development works, and for structural safety of the building and for ensuring safety during the construction/development works, etc.

31.

Prior Technical Approval from District Town and Country Planning officer is necessary for certain permissions.

(1)

The Executive Authority shall forward within a week, with specific remarks and obtain the prior technical approval from The District Town and Country Planning Officer before sanctioning and releasing the plans in the following cases of applications for permissions;

(a)

all Building permissions for Complexes;

(b)

all Building permissions for heights more than 3 floors or 9 meters;

(c)

all cases of Cinema Theaters / Petrol Pump or Stations/Storage of L.P. Gas godowns, etc.

The District Town and Country Planning Officer shall send its technical approval or rejection within fifteen (15) days of the receipt of the case to the Executive Authority concerned.

The Executive Authority shall maintain registers of all layouts, building permissions, fees and charges collected in prescribed manner.

(2)

For all constructions and reconstructions, additions and alterations of Tobacco barns a license from Tobacco Board is required.

32.

Unsafe Buildings.

- All unsafe buildings shall be considered to constitute danger to public safety and hygiene and sanitation and shall be restored by repairs, demolition or dealt with as otherwise directed by the Collector/Executive Authority.

33.

Offences and Penalties.

(1)

Any person who contravenes any of the provisions of these rules or any requirements or obligations imposed on him by virtue of these rules shall be guilty of an offence by the District Panchayat Officer shall be punished with a fine as prescribed in these rules by the District Panchayat Officer and in case of continuing offence a daily fine until the contravention is made good or removed;

(i)

take suitable actions including demolition of unauthorized works;

(ii)

take suitable action against technical personnel, which include prosecution or debarring him from further practice up to three years;

(iii)

Any unauthorized Tobacco barn running without a license from Tobacco Board is liable for demolition. In the alternative in consultation with Tobacco Board a fine of Rs. 30,000/- per annum may be imposed on unauthorized Tobacco barns which is recoverable under Revenue Recovery Act.

(2)

In the case of unauthorized constructions, the District Panchayat Officer or his officers may take any of the above actions and issue suitable instructions to the executive Authority or any other body for necessary action against the unauthorised construction/layout, besides taking action on the Executive Authority for allowing such unauthorised developments.

34.

Inspecting Authority.

- Under clause (5) of sub-section (5) of Section 44 of the Andhra Pradesh Panchayat Raj Act 1994, an officer of the Director of Town and Country Planning not below the rank of Assistant Director of Town and Country Planning is hereby designated as inspecting authority/Enquiry Officer on the matters concerned with the Land Development (Layouts and Buildings).

35.

Conformity to National Building Code of India.

- Recourse shall be made to the National Building Code of India (latest Edition) for all standards and specifications relating to building construction viz.

(a)

safety of building with regard to structural design, foundations, masonry, timber, plain cement concrete, reinforced cement concrete, structural steel, earth quake resistance, wind loads, etc.,

(b)

quality of materials and workmanship;

(c)

building services, viz., Building Plumbing. Water Supply and Drainage (including mode of sewerage disposal system). Electric installations and other services.

36.

Licensed Technical Persons for preparation of Layout proposals, Building Plans and supervision.

- The qualified technical persons shall register their names and obtain license for their practice for preparation of layouts, building plans and supervision of the works with the Dist. Panchayat Officer duly paying the requisite deposit and annual renewal fee. The qualifications competency and responsibility of licensed technical persons are as appended at Annexre. I.

37.

Requirements of Parts of Buildings.

- (i) Building permission shall not be accorded, if provision for Septic tank is not made. However the Government will provide subsidy for the families Below Poverty Line.

(ii)

No building permission shall be accorded, if provision for water harvesting pits is not made wherever necessary;

(iii)

Plinth of buildings;

The plinth or basement of any building shall be so located with respect to surrounding ground level as well as normal flood-level so as to ensure adequate drainage of the site is ensured. It shall not be less than 45 cm.

(iv)

Interior Courtyards;

Every interior courtyard shall be raised at least 15 cm above the center of the nearest street and shall be satisfactorily drained.

(v)

The other requirements for buildings shall be in conformity with the standards of National Building Code of India.

Annexures

Annexure-A

[See Rule 3 (1)]

To

The Executive Officer/Sarpanch,

Gram Panchayat,

Sir.

I/We hereby give you notice that I/We intend to utilise, sell, lease or otherwise dispose off my/our land portion or portions of the same bearing S. No. having an extent of Sq. meters in street / division ward (to be deleted wherever necessary) consequent on their conversion into a building plots/sites under Rule 3(1) of Andhra Pradesh Gram Panchayat Land Development (layout and Building) Rules-2002 for the construction of buildings for residential or non-residential, industrial, commercial purposes as indicated hereunder and in accordance with the provisions of Section 268 of the A. P. Panchayat Raj Act, 1994.

I/We forward herewith four copies of the site plans drawn to a scale 1:1000 and other plans as required under these rules with all particulars required under the Rules.

I/We enclose:

1. A statement of arrangements made for providing plantation of avenue trees in addition to the arrangements indicated in the plan.
2. A non-encumbrance certificate from the Registration Department for the lands covered by the layout together with copy of the title deed attested by a Gazetted Officer.
3. (i) A Gram Panchayat receipt for Rs. being the non-interest bearing security deposit as fixed under item 131 of Schedule annexed to these rules towards fulfillment of the conditions.

(ii)

Amortgage-deed intended in favour of the Gram Panchayat Hypothecating lands in the layout area for the value of Rs. _____ towards security deposit in lieu of cash security and abiding by the conditions prescribed in this regard.

I /We, jointly and severally agree to develop the roads to the required standards as per the specifications prescribed by the Gram Panchayat and to provide underground storm-water drains through proper culverts and to sewer and light the areas and to carryout all the arrangements to the satisfaction of the Executive Officer of the Gram Panchayat as per the agreement that will be executed by me/us on intimation.

I/We hereby undertake not to utilise, sell, lease or otherwise dispose off the land as sites for the construction of residential or non-residential building until all the amenities are provided as indicated in the conditions of the layout either by the Gram-Panchayat or by me/us as agreed upon through a registered agreement on stamped paper worth of Rs. 100/-.

I/We hereby undertake to handover the private streets or roads to the Gram Panchayat after developing them to the prescribed standards along with the lands set apart for parks/ play-grounds/Educational Institutions or for any other public purpose under clause (b) under sub rule (4) of rule 3 of the Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules -2002 issued under Section 268 of the A.P. Panchayat Raj Act. 1994.

I/We agreed to Execute the drainage work (both sewers as well as stromwater) and lighting arrangements to be carried

out by the Gram Panchayat at my /our expenses and to that extent I/We agree to deposit provisional estimated cost with the Gram Panchayat before final release of the sanctioned layout and meet any further unforeseen expenditure from time to time as may be claimed by the Gram Panchayat.

I am/we are agreed to deposit 50 per cent of the estimated cost of other works to be carried out by me/us, into the Gram Panchayat Treasury on intimation towards the security deposit (refundable) or agreed to mortgage the plots of an area of equivalent to the security deposit in favour of the Gram Panchayat within 10 days from the date of receipt of provisional/tentative approved layout.

The amount of entire deposit is refundable to me/us by the Gram Panchayat after consulting the Panchayat Raj Engineering Department as to the satisfactory execution of the work to the prescribed standards after deducting 5 per cent from the deposit towards supervision charges.

I/We request that the proposed layout may be approved and the permission may be accorded at an early date to me/us to proceed with the execution of the works as agreed to for enabling the disposal of plots in accordance with sanctioned layout.

Signature of the Licensed Engineer/Architect address(es) and Address Owner/Owners.#Surveyor/Owner/Signature of the Owners of land and of

Encl:

1. Site plan in quadruplicate
2. Statement of arrangement for avenue trees.
3. Non-encumbrance certificate.
4. Challan for security deposit / mortgage-deed / Bank Guarantee.
5. Challan for layout, scrutiny and inspection charges.
6. Copy of Ownership documents establishing the title of land attested by Gazetted Officer.
7. Certificate of demarcation of site boundaries by revenue authorities.

Annexure-B

[See Rule 3(4)(b)]

Specification for Water Bound Macadam Road

The Water Bound Macadam Road Shall Be Formed In The Following Manner:

After shaping the roadbed to the required chamber, if the sub-grade is of hard gravel soil then the metal is spread into layers of 11 cms, thick to get a consolidated depth of 15 cm. A power roller of 8 to 10 tonnes weight is generally to be used. The dry rolling should not be excessive so as to cause the crushing of metal. The rolled surface is then watered moderately and thoroughly rolled until hard and compact, so that a highly loaded vehicle makes no impression while travelling on it. The screenings from the metal gravel, fine limestone or kankar then be spread in small quantities uniformly on the surface about 1 cm., in thickness in total watered and rolled properly. Finally a top dressing of 0.50 cm. thickness of sand is spread on the surface only and finished off with final rolling. The surface is then kept most for about two weeks after opening to traffic.

d carriage way widths:- the width of carriage way for one lane of traffic should not be less than 4 meters and for two lands of traffic not less than 7 meters.

Raised footpaths on either side of carriageway:- It is necessary that the footpath shall be 15 cm. above the road edge level to provide a measure of protection to the pedestrian from vehicles. These are usually of available earth and gravel, well consolidated to the satisfaction of the Panchayat Raj Engineering Department.

Kerbstones are structurally necessary to prevent lateral spread of road surface materials and preserve the bearing value of the sub-soil by preventing ingress of sewage water, Granite or cement concrete is usual materials used for. Granite kerbs one metre long by 30 cm. x 20 cm. are usually adopted and laid-flat on roads carrying light traffic in residential areas where its effect will only be to give appearance to the street lines. To be effective and to give lateral support, the depth of concrete should be more. The top surfaces, which are exposed, should evenly be dressed and tooled. The ends of granite kerbs should be dressed square. The top surface is tooled down to the slope of the footpath generally. This aids drainage, the storm water drains culverts, etc., shall be constructed according to the sizes and specifications as may be prescribed by the Executive Officer in consultation with the Panchayat Raj Engineer.

Annexure-C

[See Rule 4(l)(b)]

Minimum permissible length of street

Function of the street

Minimum permissible width of street (in mtrs.)

Minimum width of splay required at the

function of streets (in mtrs.)

Minimum width of the passing for the carriage

way of the street (in mtrs.)

Remarks

(1)

(2)

(3)

(4)

(5)

(6)

Up to 50 meters

Minor residential culs-de-sac street (dead end street) with 13 meters X 13 meters square space for free movement of vehicles at the dead end land.

8.00

12.00

4.00

This type of width can be permitted only at discretion of the Gram Panchayat and in consultation with Director of Town and Country Planning.

Up to 250 meters

Minor residential loop street

10.00

16.00

6.00

Total length of loop street shall not exceed 150 meters and both ends of loop street shall join in street having a width not less than 13.00 meters width.

Up to 600 meters length of the road exceeding 600 meters.

Residential street

Residential Collector Street

12.00

18.00

18.00

24.00

6.00

10.00

Note. - In respect of layouts housing scheme for economically weaker sections of the society sponsored by Government Quasi Government agencies the norms as notified by the Government in G.O.Ms.No. 51. Housing (Vand Lay-1)

Department dated 15-7-98 shall be followed for plot sizes road widths and public purpose spaces etc. and subject to any modifications issued from time to time.

Annexure-D

[See Rule 3(3)(ix)]

Guarantee Deed

Rule No.....

Where as.....is / are required to furnished a Bank guarantee to the

Sarpanch.....(Rupees) as per the orders of the Gram Panchayat sanctioning the layout No.....
Dated..... in respect of R.S.No..... situated at.....

I/We hereby under take to pay the Sarpanch the side sum of Rs..... Rps.....) demand

I/We undertake not to revoke the guarantee without written authority from the Sarpanch..... Gram Panchayat.

Witness:

1.

2.

SignatureBank.

Annexure-E

[See Rule 11(4)]

Agreement Deed

Agreement entered into this.....between Sri/Smt here in after called as the first part which term includes legal heirs and successors and the individual member and the Gram Panchayat (hereinafter called the council) as the second party where by it agreed to as follows:-

(1)

That Sri/Smt..... has submitted an application under Rule 3(1) of Andhra Pradesh Gram Panchayat Land Development (layout and Building) Rules, 2002 issued under the provisions of clause (xvii) of sub-section (2) of the Section 368 of Panchayat Raj Act, 1994 indicating his/her intention to make layout and form new private streets or roads and dispose of sites for plotting of the land situated at.....under Survey No.....

(2)

Where upon the council agreed to grant permission for making private streets and roads and sites for construction of buildings on the aforesaid land with the conditions that the cost of entire drainage works erection of water supply mains and street lighting water bound macadam roads table drainage in lieu of the balance of amount plots of equivalent value should be mortgaged at the rate of Rs.....Per Sq. Meters and the following amenities i.e., asphalt roads'table drains street light brackets and avenue plantations should be complete by Sri/Smt..... (first part) within one year from the date of sanction of layout as per the specifications given by the Gram Panchayat in their proceedings vide letter No.....Dated.....

(3)

That the first party agreeing to the above conditions and has deposited cost of drainage and other works amounting to Rs.....Under Challan No.....dated.....

(4)

That the first party has mortgaged plots or land bearing R . S . N o s.....and measuring.....costing Rs.....in favour of the Gram Panchayat in lieu of the balance of betterment charges for providing water bound macadam roads, table drains, street light bracket and avenue plantation under a registered mortgage deed No.....

(5)

That the first party only (on behalf of the second party) under takes to provide the amenities such as water bound macadam road, table drains and street light, water supply mains within one year from the date of sanction of the layout as per the specifications given by the Executive Officer of the Gram Panchayat.

The first party hereby bind himself/ themselves to fulfil the above conditions imposed by the Gram Panchayat within a period of one year from the date of sanction of the layout, failing which the Gram Panchayat will be entitled to with hold the sale of plots and the grant of permission for the construction of houses under the relevant provisions of the Andhra Pradesh (Andhra Area) public health Act, 1939, or any other enactment for the time being in force. In case the party fails to comply with the conditions within the stipulated period, the Gram Panchayat is empowered to take action under the provisions of A.P. Panchayat Raj Act -1994 and auction the mortgaged plots or land and get the works completed and recover the expenses from the first party (owner) required for completing the works in the layout. The first party and his heirs shall not be entitled to raise any objection for such recovery.

In witness where of partly I affix my signature on this day already mentioned in the agreement before the following.

Witness:

Witness

Sarpanch, Gram Panchayat

Seal:

Annexure-F

[See Rule 11(5)]

Deed of Mortgage by Conditional Sale

This indenture made this day.....of two thousand.....between Sri.....
S / o.....'.....residing at.....(herein after called the Mortgagor which expression shall unless
excluded by or is repugnant to the subject or context, include his legal heirs, executors, administrators and assigns) of the
one party, and the Gram Panchayat called 'This Mortgagee' which expression shall unless excluded by or is repugnant
to the subject or context, include his successor in office and assign of the other part.

Whereas the Mortgagor is the absolute and sole beneficial owner and is seized, possessed of or otherwise well and
sufficiently entitled the land and the premises hereinafter described in the schedule hereunder written and for greater
clearance declared on the plan annexed hereunto and thereon above with the .bound areas there of
coloured.....i.....and expressed to be hereby conveyed, transferred and assured (hereinafter referred to as the said
mortgage property).

And whereas the mortgage applied for permission under Rule 3(1) of the Andhra Pradesh Gram Panchayat Land
Development (Layout and buildings) Rules - 2002 issued under the provisions of Section 268 of Andhra Pradesh
Panchayat Raj Act 1994 to make a layout and form a new private street or road and building plots for residential /
non-residential / industrial purposes, and in the land bearing R.S. No..... situated at purposes, and in the
land bearing R.S. No..... situated at

And whereas the mortgagee having accepted the same has sanctioned the layout plan in file No.....
subject to the condition that the following works as per specifications under Rule 5(1) of Andhra Pradesh Gram
Panchayat Land Development (Layout and Building) Rules -2002 will be completed by the mortgagor within one year
from the date of release of the final approval of the layout. Whater bound macadam roads estimated to cost
Rs..... Planting of avenue trees atintervals estimated to cost
Rs.....Meters.....

And whereas Mortgagor according to the terms and conditions of grant has separately credited Rs.....in the
Gram Panchayat Treasury vide Challan No and dated towards the following works to be executed by
the Gram Panchayat within one year of the date of final release of the approved layout.

Laying of underground sewers along the roads of the layout estimated to cost Rs.....laying of storm
water drain culverts etc., along the roads of the layout and construction at the estimated to cost of Rs.....

Providing streetlights along with the street of the layout at meters intervals for the estimated cost.

(iv)

Provision of water supply estimated of cost Rs.....

And whereas the Mortgagor having deposited 50% of the provisionally estimated cost of works mentioned for water
supply to provide and complete the works as stated in para 2 within a period of one year from the date of release of the
approved layout, in addition to the lands expressly conveyed, transferred and assured as per the description given in the
schedule towards the balance of 50% of the estimated cost, of the works.

Now this indenture witness as follows:

(i)

In pursuance of the rules relating to the approval of layout (hereinafter referred to as the said rules) and in consideration
of the deposit and hypothecation of the acquired lands by the mortgagee to the mortgagor pursuant to the provisions
contained in the said rules, the mortgagor both hereby covenant with the mortgagee that the mortgagor shall always
duly observe and perform all the terms and conditions of the said rules.

(ii)

With possession of the lands and the deposit in favour of the Mortgagee, if the mortgagor completes the work as stated
in para supra to the satisfaction of the Executive Officer, within the agreed period of one year from the date of release of
the approved layout: the mortgagee shall at the cost of mortgagor be entitled to the re-transfer of the said plots or land to
the mortgagor without any further liability on the same towards the execution of works contemplated in supra.

It is hereby expressly agreed declared that if there shall be any breach by the mortgagor of the covenants it shall be
lawful for the mortgagee to sell the mortgaged properties or any part thereof in any manner as the mortgagee shall think

fit and the mortgagor shall forfeit the right of redemption as against the mortgagee.

(a)

and it is hereby declared that the mortgagee shall be free to complete the said works with the amount so realised and the mortgagor shall not be entitled to question the unfettered right of the mortgagee in any court of law.

If the mortgagee has to spend additional amount for execution of the said works over and above the sale proceeds referred to in the above para, it shall be realised from the "Mortgagor" or the purchasers of individual plots in the said layout area in the same manner as property tax and the other plots not covered by the Mortgagee will be under the first charge towards the said excess amount spent by the Gram Panchayat.

That the mortgagee shall be in actual possession of the plots and continue to retain the same till the completion of the said works and the mortgagor shall not interfere with the possession interest, rights, and title of the mortgagee over the said plots in any way detrimental to the interests, rights accrued in security and charge over the said plots.....of the mortgage till the works are completed as agreed upon.

The mortgagor does also hereby agree to pay the Govt. Gram Panchayat taxes over the said property if any, till the redemption of the property as the same vests automatically in favour of the Gram Panchayat.

The terms and conditions of the deed are binding and shall continue to be binding on the mortgagor, his heirs, successors, in interest, right as well as a title and ownership and none of them shall be entitled to question the correctness of the genuineness of the terms and conditions of this deed anywhere at any time in any court.

In witness where of the said mortgagor has herein set its hand the day and the year first above written.

Signed By The Said Mortgagor

In the presence of

Witness:

Address:

Occupation:

Witness:

Address:

Occupation:

Signed by Sri.....in the office of the Gram Panchayat for and on behalf of the Gram Panchayat, in the presence of:

Witness:

Address:

Occupation:

Witness:

Address:

Annexure-G

[See Rule 14(1)]

Dated:.....

From

Name of owner of the Site and building.

Address

To

The Executive Authority

Gram Panchayat,

_____Mandal,

District.

Sir,

In intend to construct/reconstruct/make alterations or additions to a building other than a hut, in the site or plot of land, Town or Revenue Survey No. Street or road named _____in the constituency and, in accordance with Andhra Pradesh Gram Panchayat Raj Land Development (Layout and Building) Rules, 2002.1 forward herewith in triplicate:-

(a)

A site plan of the land on which the building is be constructed/ reconstructed/altered or added to

(b)

A plan of the building showing, plan of each floor, elevations and section as specified under Rule 14 of the Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002 and

(c)

The specification of the work as specified under rule 35 of the Andhra Pradesh Gram Panchayat Land Development (Layout and Building) Rules, 2002.

I intend to use the building only as dwelling house/not as a dwelling house but for the purpose of _____

I request that permission may be accorded to execute the said work.

Signature of the Licensed Surveyor/Engineer/Architect

Signature of the owner of the land and Building.

Joint undertaking of Owner and Licensed Technical persons

1. I agree not to proceed with the execution of the work until approval is signified by the executive authority under the Andhra Pradesh Gram Panchayat Raj Land Development (Layout and Building) Rules, 2002.

2. I agree to have the proposed work demarcated on the ground with durable stones or clear marks for verification by the inspection officer at site.

3. I agree not to do any work otherwise than in accordance with the approved site and building plans and specifications which have been approved or in contravention of any of the provisions of the Andhra Pradesh Gram Panchayat Raj Act, 1994. Or any rule, by law order or other declaration made thereunder of any direction or requisition lawfully given or made under the said Act, rules or bye-laws.

4. I agree to make any alterations, which may be required by any notice issued or by any order confirmed by the Executive Authority under the provisions of Andhra Pradesh Panchayat Raj Act, 1994.

5. I agree to keep one copy of the approved site plan and one set of copies of the sanctioned plans of the building, at the site of the building at all times when the work is in progress and also agree to see that such plans are available and the building is open at all times for the inspection of the executive authority or any officer authorised by him in that behalf.

6. I agree to give notice to executive authority and furnish a set of completion plans within fifteen days from the date of completion or occupation of the building, whichever is earlier.

7. I also agree not to occupy the building that will be constructed/reconstructed by us/me or cause or permit to be occupied until we have obtained a certificate from a competent officer of the Public Health Department of the Gram Panchayat.

Signature of the owner of the Licensed Surveyor/Engineer/Architect.

Signature of the owner of the land and the building.

Annexure-H

[See Rule 19(1)]

Minimum clearance between buildings or any part of building and electric supply lines as follows:

Sl.No.

Voltage level

Vertical (meters)

Horizontal (meters)

Remarks

1.

Low and Medium voltage and service lines.

2.40

1.20

-

2.

High Voltage lines up to and including 33,000

Voltages.

3.70

1.85

-

3.

Extra high voltage lines beyond 33,000 voltage

(+) 0.37

(+) 0.30

The additional distance required in addition to the voltage level of Item No. 2 i.e., additional distance shall be maintained for column 3. 4 of every additional 33,000voltage are part thereof.

Annexure-I

[See Rule 3 (3)(v)]

Qualification of Licensed Technical Personnel For Preparation of Schemes For Building Permit and Supervision.
General

1. The qualification of the technical personnel and there competence to carry out different jobs for building permit and supervision for the purpose of licensing by the authority shall be as given in Regulations No. 1 to 6. The procedure for licensing the technical personal is given in Regulation.

1. Architect

Qualifications. - The qualifications for licensing of Architect will be the Associate membership of the Indian Institute of Architects or such Degree or Diploma which makes him eligible for such membership or such qualifications listed in Schedule XIV of Architects Act 1972 and shall be registered under the Council of Architecture as per Architects Act 1972.

Competence. - The licensed architect shall be competent to carry out work related to Building permit, as given below and shall be entitled to Submit:

(a)

All plans and related information connected with building permit;

(b)

Structural details and calculations for building on plot up to 500 Sq. mts. and up to 3 storeys or 11 m; and

(c)

Certificate of supervision and completion for all buildings.

2. Engineer

Qualifications. - The qualifications for licensing of Engineer will be the corporate membership (Civil of the Institution of Engineers or such Degree or Diploma in Civil for Structural Engineering which make him eligible for such memberships).

Competence. - The licensed engineer shall be competent to carry out the work related to building permit as given below shall be entitled to submit.

(a)

All plans and related information connected with building permit.

(b)

Structural details and calculations for building on plot up to 500 Sq. mts and up to 5 storeys or 18 m; and

(c)

Certificate of supervision and completion for all buildings.

Competence. - The Surveyor will be entitled to submit:

(a)

For Surveyor I:

(i)

All plans and related information connected with building permit on plot upto 200 Sq. mts and upto 2 storeys and

(ii)

Certificate of supervision of buildings on plots upto 200 Sq. mts and upto 2 storeys.

(b)

For surveyor II

(i)

all plans and related information upto 50 Sq. mts built up area and upto 2 storeys: and

(ii)

Certificate of supervision for limits at (1) above.

4. Structural Engineer

Qualifications. - Qualifications for licensing of structural engineer shall be the following with minimum 3 years experience in Structural Engineering practice with designing and field work.

(a)

Graduate in Civil Engineering of recognised Indian or Foreign University and Chartered Engineer or Associate Member in Civil Engineering Division of Institution of Engineers (India) or equivalent Overseas institution; and

(b)

Associate member in Civil Engineering Division of Institution of Engineers (India) or equivalent Overseas Institution possessing exceptional merits.

The 3 years experience shall be relaxed to 2 years in the case of Postgraduate degree of recognised Indian and Foreign University in the branch of Structural Engineering. In the case of doctorate in Structural Engineering the experience required would be one year.

Competence. - Structural Engineers shall be competent to submit the structural details and calculations for all buildings and supervision.

In the case of complicated buildings and sophisticated structures, as decided by the Authority which are within the horizontal areas and vertical limits under 4-2.2(b) and 4-4.2(a) (i) shall be designed only by structural engineers.

5. Town Planner

Qualifications. - The minimum qualification for a Town Planner shall be the Associate membership of the Institute of Town Planner or Post-graduate Degree or Diploma in Town and Country Planning, which makes him eligible for such membership or recognised by the Public Service Commission for the post of Assistant Town Planner.

Competence. - The licensed Town Planner shall be entitled to submit:

(a)

All plans and related information connected with development permit of all areas: and

(b)

Certificate of supervision for development of land of all areas.

6. Licensing:

Technical Personnel to be licensed:-The qualified technical personnel or group as given in Regulations No.2 to 5 shall be licensed with the Authority (District Panchayat Officer concerned) and the license shall be valid for one calendar year ending 31 December after which it shall be renewed annually.

Fees for Licensing. - The annual licensing fees shall be as decided by the Authority.

Schedule 2

(See Rule 27)

Sl. No.

Details of the item

Gram Panchayats falling in UDA, Peripheral

Gram Panchayats of Municipalities, Major Gram Panchayats, and declared potential areas.

Minor Gram Panchayat

(1)

(2)

(3)

(4)

1.

Layout fee

Rs. 1.00 per M2 subject to minimum of Rs. 3,000.00

Rs. 0.25 per M2 subject to minimum of Rs. 1,000.00

2.

Inspection & Technical Scrutiny fee of Town

Planning Dept., Rs. 100.00 per acre subject to minimum of Rs.

1,000.00

3.

Security Deposit

Rs. 2.00 per M2 subject to minimum of Rs.

10,000.00

Rs. 1.00 per M2 subject to minimum of Rs.

5,000.00

4.

Building Permit fee

(a) Residential

Rs. 50.00 per structure

(i) Semi Permanent/Thatched

Rs. 10.00 per M2 of built up area subject to minimum of Rs. 200.00

Rs. 2.00 Per M2 of built up area subject to minimum of Rs. 100.00

(ii) Permanent

(b) Non-Residential

Rs. 20.00 per M2 of built up area subject to minimum of Rs. 1000.00

Rs. 4.00 per M2 of built up area subject to minimum of Rs. 200.00 10% of the total fee.

5.

Renewal of layout/ building plan

20% of the total area

6.

Penalty for

(a) violation of rules

Rs. 1,000.00

Rs. 500.00

(b) for continuing offence

Rs. 10.00 per day

Rs. 5.00 per day.

7.

Other fee

(a) Building application Annexure Form and others annexures

Rs. 10.00 each

Rs. 5.00 each

(b) Unobjectionable encroachment

Rs. 1.00 per M2

Rs. 0.50 per M2

8.

True copies charges

(a) village map or LUP

Rs. 100.00 each

Rs. 100.00 each

(b) approved layout copy

Rs. 50.00 each

Rs. 50.00 each

(c) Approved Building Plan

Rs. 50.00 each

Rs. 50.00 each

Related AI tags, queries and research notes

Translation